Deemed ineligible

The Supreme Court has pointed to the SIR's flaws by design

At Wednesday's hearing of a petition on the Delhi SIR in the Supreme Court, Justice Joymalya Bagchi asked questions that cut to the heart of the Election Commission of India (ECI)'s SIR of electoral rolls. If an existing voter was "lax, inert or did not respond" to enumeration forms, was that a ground for the ECI to "forfeit his or her right to vote forever"? The Bench headed by the Chief Justice of India Surya Kant said that the ECI was in "error" to force such voters, struck off for not returning enumeration forms, to reapply on Form 6 as if they were new voters. It asked why voters who had shifted residences could not just disclose details and why deleted voters could not fill enumeration forms belatedly. This is the central design flaw of the SIR as it shifts the burden of enrolment from the state to the elector, including those who have voted before, and treats a mere change of address as ground for deletion. The share of draft deletions recorded as "shifted" or "absent" rose from 55% in Bihar to 72% in States/Union Territories in Phase 3. In Karnataka, about 84 lakh electors were deleted, marked as "shifted" or "absent" during enumeration. But only a net of 8.2 lakh, including new electors, were added during the claims phase, with the final roll being 64.5 lakh short of the projected adult population. Requiring moved voters to re-register as fresh applicants defeats the ECI's historic mandate of widening the franchise, which was inherent in the 2002-03 intensive revision, where enumerators enrolled shifted voters at their new homes and the Chief Electoral Officer reconciled the old entries.

Justice Bagchi also mentioned that the Bihar judgment was not a "binding precedent" and that the legality of "logical discrepancy" checks, allowed only as an "interim arrangement" in West Bengal, had not been finally adjudicated. No statute or rule provides for judging a voter's eligibility on the basis of family size or the age gap between voters and parents, which were two of the ECI's ludicrous and algorithm-driven "logical discrepancy" checks. In West Bengal these checks resulted in massive disenfranchisement and *The Hindu*'s analysis found that in Delhi, Muslims were disproportionately flagged. But the Court should not merely issue managerial fixes such as extended deadlines or displaying printed lists in blocks, as it has in the past. The final SIR rolls are erroneous as deletions flowed from a flawed design rather than just lapses by the ECI. The dead and duplicate entries that the SIR identified should be removed and newly eligible electors added. Voters wrongly removed from draft rolls must be included again. The larger questions over the Commission's SIR conduct and how its members are appointed must also be settled.

Open to probe

Public functionaries must not use privacy to seek exemption from scrutiny

The Digital News Publishers Association's (DNPA) challenge to the Digital Personal Data Protection Act, 2023, and its Rules, has drawn attention to concerns that a law to safeguard informational privacy risks creating a serious chilling effect on the media. The absence of a specific exemption for journalistic activity could subject reporters investigating official misconduct or corruption to the obligations of a "data fiduciary", requiring them to notify and seek consent from the very individuals they are investigating. Such onerous requirements could affect investigations undertaken in the public interest. The implications extend to routine newsgathering too, where personal information is integral to reporting. The omission is particularly consequential because the drafts in 2018, 2019 and 2021 carried a journalistic exemption. The Act already provides exemptions for certain forms of data processing, including for research and statistical purposes, making the denial of similar protection to journalists difficult to justify. Non-compliance can attract penalties of up to ₹250 crore, posing an existential threat to smaller and independent newsrooms. The DNPA petition also challenges Section 44(3), which amended the RTI Act, 2005, removing the earlier public-interest qualification concerning disclosure of personal information. The protection of personal information must not be absolute; an overriding public interest must remain a legitimate ground for disclosure, particularly when the information is held by public authorities. Investigations into corruption often rely on asset disclosures and tender documents containing personal data. Restricting access to these records risks reducing journalism to merely reproducing government releases.

The Supreme Court, while issuing notice on the petition, rightly emphasised the need to balance press freedom with the right to privacy. Although journalists in India enjoy no specific statutory protection for their work, freedom of the press is constitutionally protected under Article 19(1)(a). The Court has also shielded newspapers from arbitrary state restrictions. However, growing mistrust of legacy media and the rise of independent content creators have made it difficult to determine who receives such protection. The Centre has also flagged this concern. Yet, carving out distinct categories is no easy task – a 2026 Reuters Institute report shows that the proportion of 18- to 24-year-olds identifying social media as their primary source of news rose from 21% in 2015 to 39% in 2025. A purely legalistic determination of these competing concerns may perhaps prove too onerous. Stakeholders must build consensus on a mutually acceptable framework where public functionaries and those handling public funds are not insulated from scrutiny under the guise of privacy. Union Minister Ashwini Vaishnaw's indication that he would meet editors is a welcome step towards consensus.

The examination overload, its enormous cost



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Once upon a time, not very long ago, students could focus on their education, confident that their academic results would determine admission to higher education and career opportunities. Today, millions of young Indians face not one examination but a cascade of them – a seemingly endless series of entrance examinations. Besides board examinations, aspiring engineers and doctors generally face entrance tests such as the Joint Entrance Examination (JEE) and the National Eligibility-cum-Entrance Test (NEET), respectively. Architecture and law aspirants must also navigate examinations such as the National Aptitude Test in Architecture (NATA) and the Common Law Admission Test (CLAT). Others must take the Common University Entrance Test (CUET) or institution-specific examinations. With affordable, quality higher education in short supply, many candidates make repeated attempts. Even a good bachelor's degree does not guarantee postgraduate admission.

Postgraduate aspirants face examinations such as the Graduate Aptitude Test in Engineering (GATE), Common Admission Test (CAT), Common University Entrance Test for Postgraduate Programmes (CUET-PG) and various university-level entrance tests. Research aspirants face further qualifying examinations, including the National Eligibility Test (NET). The ordeal continues during recruitment. Academic qualifications merely establish eligibility, while employment often depends on examinations conducted by the Union Public Service Commission (UPSC), State Public Service Commissions, Staff Selection Commission (SSC) and Institute of Banking Personnel Selection (IBPS). The proliferation of entrance and recruitment examinations has turned education and employment into a relentless cycle of competitive testing.

The cost of competition

Each of these layers of examinations demands months of separate preparation, payment of separate coaching fees, and unexplainable suffering and distress. Somewhere in this labyrinthian relay race, the very examinations that were supposed to certify students' learning, abilities and achievements have been rendered irrelevant. It is time to ask a blunt question: why do we need all these additional gates when the school and university leaving examinations already exist to measure merit?

Separate examinations for admission and jobs were declared inevitable because school board and university examinations were argued to suffer from a lack of uniform standards and their susceptibility to manipulation and rampant use of unfair means. The argument assumes that the new layers of examinations would be free from these deficiencies. The on-the-ground experience has only proven that the designed cure is worse than the disease itself.

Public examinations are marred by allegations of paper leaks and other unfair practices, such as dummy candidates, mark manipulation, and merit garbling, leading to repeated cancellations. Each incident wastes public money, delays admissions and recruitment, and erodes faith in the fairness of the system.

> India's obsession with layers of examinations must end, and the focus must return to the forgotten value of sustained academic performance

Centralised counselling for seat allotments complicates the process. They also multiply anxiety, stress and mental trauma. Layering examination upon examination rather than distributing this pressure forces students to spend their entire adolescence running an unbroken loop of a preparatory marathon.

Additionally, such examinations entail exorbitant costs that ultimately fall disproportionately on families who can ill afford them. Children from the economically weaker and marginalised sections of society struggle to manage and often cannot. Far from being neutral arbiters of merit, these examinations have come to reward the ability to pay for preparation rather than raw ability or diligence in school.

Youth frustrations may have reached a tipping point, compelling them to take to the streets. Several States have seen protests of varying scales. It remains to be seen whether the proposed strengthening of the law against unfair practices in public examinations and the recommendations of the high-powered committee constituted in July 2026 will address these systemic deficiencies.

The present system of layered examinations suffers from design defects and systemic deficiencies. The National Testing Agency's continuing difficulties, despite a comprehensive review by a committee headed by a former space scientist in 2024, have raised questions about the effectiveness of the reforms. The constitution of another high-powered committee, in 2026, underscores the persistence of these concerns.

We are still thinking only of reforming this broken system without stopping for a moment to ask a critical question: how can we trust centralised public examinations conducted by agencies that have repeatedly failed to fulfil their responsibilities when we cannot trust years of assessment by teachers throughout a student's course of study?

Why bear such a heavy burden when, academically speaking, these layers of examinations cannot possibly substitute for the regular assessment of knowledge acquired over years of study? At most, they can evaluate candidates on a much narrower, often more coachable skill: ticking off the answer choices quickly under pressure in a specific question format, while disregarding years of demonstrated cumulative academic performance.

The result is a strange inversion. Students no longer study to learn; they study to clear filters. Classroom teaching has been relegated in favour of coaching-centre drilling. The board examination becomes a formality, and we have ended up with a system where the credentialing examination that ought to matter most – the one tied to actual classroom learning – now matters the least.

Merit already exists, use it

It makes sense to fix the school and higher education system, which has long been broken and continues to be hammered, causing further damage. Now is the time to focus on restoring the credibility of school and university examinations. Whatever their imperfections, these examinations are not arbitrary, as they assess knowledge acquired over years of study, involve continuous evaluation and are moderated by boards and universities with established standards. With some investment, they can become far better and more reliable measures of merit.

A student's Class XII marks or university Cumulative Grade Point Average (CGPA) already reflect years of consistent performance – a far more holistic and harder-to-game measure of ability and diligence than a single high-stakes examination. If board and university examinations are inconsistent across States or institutions, the answer is to standardise and strengthen them through normalisation, common moderation frameworks, external audits and periodic score equating, rather than building an entirely separate examination system on top of them. If admission committees and employers doubt the rigour of certain boards or universities, those doubts should be addressed by reforming the assessment standards of these institutions, rather than requiring every student in the country to run a second, third or fourth race, regardless of where they studied.

Admissions to higher education institutions ought to be based on standardised and moderated school-leaving examination results. Scholarships and fellowships should be awarded on the basis of academic performance and track records. Recruitment to public services could be based on verified academic records and structured interviews. At most, a single national test at each exit level of the educational hierarchy could be conducted to assess students' scholastic aptitude, with the scores used to moderate board or university examination results.

Global practices

This is not a radical proposal by international standards. Many countries admit students to university primarily based on their school-leaving results, supplemented by references and essays, with marginal weight assigned to scores in language and scholastic aptitude tests. It is India's exceptional layering of tests, often to assess the same competency, tested repeatedly by different bodies, that is the outlier.

The argument for dismantling India's entrance and recruitment examination pyramid is not an argument against standards. It is an argument that standards already exist, embedded in the school and university systems which India has spent enormous public resources building, and that repeatedly re-testing the same students for the same underlying competencies wastes money, invites corruption, and causes real harm to the wellbeing of young people. Reforming and trusting the examinations India already has would do more to promote genuine merit than adding yet another layer of examinations ever could.